



File No.: PS/00133/2020

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 08/11/2019. The complaint is directed against Ms. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent) for actions that could violate data protection legislation. The reasons on which the complaint is based are as follows:

“FIRST. On October 9, 2019, she submitted through the electronic headquarters of the Town Hall of Castropodame a document addressed to the Mayor regarding her working conditions and the payroll for the month of September. Entry 2019-E-RE-198.

SECOND. On the afternoon of the same day, she became aware that Ms. B.B.B., Secretary of the Town Hall, had posted a photo of the aforementioned document on her personal WhatsApp status.

THIRD. This fact was reported at the Civil Guard barracks in Bemibre on October 9, 2019, as it could be considered, according to Articles 413 to 418 of the Penal Code, a crime of breach of trust in the custody of documents and violation of secrets, in addition to infringing on her privacy by using her position as a public servant to prevail over her role.”

Along with the complaint, a copy of the report drawn up by the Main Post of the Civil Guard in Bemibre on 09/10/2019 and a screenshot of the image of the document uploaded to the respondent's WhatsApp are provided.

SECOND: Prior to this complaint, on 11/10/2019, this Agency had received a letter from the Mayor-President of the Town Hall of Castropodame informing it of the following facts: “Ms. A.A.A. submitted application number 2019-E-RE-198 on October 9, 2019, as a labor employee of the Town Hall of Castropodame, regarding the work she is enduring due to the absence of the other administrative assistants and that she has not been compensated €200 from the payroll for the month of September, which was agreed upon in a negotiation table for performing tasks above her category that have been carried out for years without compensation.

On the afternoon of October 9, 2019, this Mayor received a call from the worker A.A.A., in which she asked her to verify the WhatsApp status of the Secretary, Ms. B.B.B., because she does not have her phone number and has been informed that Ms. B.B.B. has published a photograph of the document submitted by Ms. A.A.A.

Upon verifying Ms. B.B.B.'s WhatsApp status, a first status was observed that said “calentito calentito” and a second status in which the document that Ms. A.A.A. submitted that same day through the Electronic Headquarters of the Town Hall of Castropodame was indeed displayed.

That same afternoon, the Civil Guard barracks in Bemibre requested my presence as a witness to the complaint filed by Ms. A.A.A., where I was questioned and informed that the facts would be investigated.

Ms. A.A.A. again submitted a request in the municipal entry register number 2019-E-RE-214 on October 10, 2019, informing the Town Hall of Castropodame of the complaint filed against Ms. B.B.B. for using a personal document to publish it openly on her WhatsApp status, requesting that this entity take the necessary measures.

On October 11, 2019, the worker Ms. A.A.A. was asked to present the complaint made to the Civil Guard, which was registered on the same date with registration number 2019-E-RE-2016.”

The aforementioned letter was accompanied by the following documents:

☐ Letter submitted by the complainant to the Town Hall of Castropodame on 10/10/2019 informing of the facts.

☐ Letter submitted by the complainant to the Town Hall of Castropodame on 09/10/2019.

☐ Resolution of the Town Hall of Castropodame dated 10/10/2019, in which it was decided to inform the Data Protection Agency of the situation.

☐ Letter from the Town Hall of Castropodame dated 10/10/2019 requesting the complainant a copy of

the complaint filed with the Civil Guard of Bembibre.

- ☐ Copy of the report drawn up at the Main Post of the Civil Guard in Bembibre on 09/10/2019.
- ☐ Screenshot of the image of the document uploaded to the respondent's WhatsApp.
- ☐ Letter from the Town Hall of Castropodame dated 11/10/2019 requesting a report from the Municipal Assistance Service of the Bierzo County Council.

THIRD: Prior to the admission of the complaint for processing, it was transferred to the Town Hall of Castropodame, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

On 02/01/2020, a response letter from the Mayor-President of the local entity was received by this Agency, in which the following was stated:

"[...] 1. The duration of the document as a WhatsApp status. The exact duration of the status is unknown since when she received the notice from the worker, it was when she entered to check that the status was posted, approximately at 15:25, and later at 17:17 when she looked again, it had already been removed.

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2. Attached is the legal report issued by the Legal Advisor of the El Bierzo County Council dated 07/11/2019.

3. The Castropodame City Council has not conducted any training on data protection.

Regarding the decision made on the matter at hand, this Mayor's Office does not have the authority to make any decision, having forwarded the documentation in the investigation file to the Ministry of Territorial Policy and Public Function in order to determine the degree of severity.

FOURTH: On 30/03/2020, in accordance with Article 65 of the LOPDGDD, it was agreed to admit the claim presented by the claimant for processing.

FIFTH: On 16/06/2020, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the aforementioned GDPR.

SIXTH: Upon notification of the initiation agreement, the claimant, by means of a letter dated 28/06/2020, denied the reality of the reported facts and the existence of a criminal proceeding, DILIGENCIAS PREVIAS PROC. ABREVIADO ***PROCEDIMIENTO.1, opened in the Court of First Instance and Instruction No. X, of Ponferrada (León), requesting the suspension of the procedure due to the existence of criminal prejudiciality regarding the same facts and that a complete copy of the file be provided to her.

SEVENTH: On 08/07/2020, information was requested from the aforementioned Court regarding the actions taken by it, as well as its opinion on the existence of identity of subject, fact, and basis between the alleged administrative infringement that had motivated the instruction of the referenced procedure and the corresponding criminal infringement, in accordance with Article 31 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector.

On 08/10/2020, a response was received from the Court of First Instance and Instruction No. X of Ponferrada (León) regarding the Diligencias Previas of the Abbreviated Procedure

***PROCEDIMIENTO.1, informing that:

By virtue of what was agreed in the resolution of this date, issued in the referenced procedure, I direct this communication to inform you that, in the referenced procedure, followed in this Judicial Body against B.B.B., there is indeed identity of subject, fact, and basis between the alleged administrative infringement and the corresponding criminal infringement, with the present proceedings still pending as of this date. Your reference PS/00133/2020.

EIGHTH: On 08/07/2020, the Castropodame City Council was asked whether it was a party in the opened criminal process; on 15/07/2020, the City Council responded that the local entity had not initiated any judicial action and that it was not part of the Abbreviated Procedure

***PROCEDIMIENTO.1 opened before the Court of Instruction No. X of Ponferrada.

NINTH: On 17/07/2020, the Director of the Spanish Agency for Data Protection agreed to suspend the sanctioning procedure PS/00133/2020 initiated against the claimant upon becoming aware of the Diligencias Previas of the Abbreviated Procedure ***PROCEDIMIENTO.1 that had been initiated for the same facts in the Court of First Instance and Instruction No. X of Ponferrada (León).

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TENTH: On 26/06/2023, a communication was received from the Provincial Court of León informing that the case is archived, having issued a Judgment on 03/04/2023 and sending a copy of the final judicial ruling in the Abbreviated Procedure ***PROCEDIMIENTO.2, whose originating procedure is the Diligencias Previas of the Abbreviated Procedure ***PROCEDIMIENTO.1.

ELEVENTH: On 29/06/2023, the Director of the Spanish Agency for Data Protection agreed to lift the suspension of the sanctioning procedure initiated against the claimant and to continue its processing.

TWELFTH: On 13/07/2023, the Director of the Spanish Agency for Data Protection agreed to issue a resolution appointing a new instructor.

THIRTEENTH: On 27/07/2023, the instructor of the procedure agreed to carry out the following tests:

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To consider reproduced for evidentiary purposes the claim filed by the claimant and its documentation, the documents obtained and generated during the admission phase of the claim, and the report of prior investigative actions that are part of the procedure E/11345/2019.

To consider reproduced for evidentiary purposes the allegations against the initiation agreement of the referenced sanctioning procedure, submitted by the respondent and the accompanying documentation.

To consider reproduced for evidentiary purposes the information provided by the Town Hall of Castropodame; the information provided by the Court of First Instance and Instruction No. 8 of Ponferrada; and the information provided by the Provincial Court Section No. 3 of León, Procedural Support Unit.

FOURTEENTH: On 30/08/2023, a Resolution Proposal was issued stating that the Director of the AEPD should archive the case against the respondent for the infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

The respondent did not submit a written statement of allegations to the aforementioned Proposal within the established timeframe.

FIFTEENTH: From the actions taken in the present procedure, the following has been established:

PROVEN FACTS

FIRST. On 08/11/2019, the claimant filed a complaint with the Spanish Agency for Data Protection stating that on 09/10/2019, she submitted a document through the electronic headquarters of the Town Hall addressed to the Mayor regarding her working conditions, and that on the afternoon of that same day, she learned that the respondent had published a photo of the aforementioned document on her WhatsApp status, with a possible violation of personal data protection regulations.

SECOND. The claimant, on 09/10/2019, filed a complaint regarding the aforementioned facts with the Civil Guard Command of Membibre (León).

THIRD. On 11/11/2019, the Town Hall of Castropodame sent a letter to the Spanish Agency for Data Protection, informing about the same facts.

FOURTH. There is a letter dated 27/12/2019 from the Town Hall of Castropodame stating that:

“1. The duration of the document as a WhatsApp status. The exact duration of the status is unknown

since when the worker received the notice, she checked to see that the status was posted, approximately at 15:25, and subsequently at 17:17 when she looked again, it had already been removed.

2. Attached is the legal report issued by the Legal Advisor of the El Bierzo County Council dated 07/11/2019."

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3. The Castropodame City Council has not conducted any training on data protection.

FIFTH. In a written statement of allegations dated 28/06/2020, the defendant denied the facts and communicated the existence of Preliminary Proceedings, Summary Procedure ***PROCEDURE.1 before the Court of First Instance and Instruction No. X, of Ponferrada (León), requesting the suspension of the procedure due to the existence of criminal prejudiciality regarding the same facts.

SIXTH. In response to a request from the AEPD dated 08/07/2020, the Castropodame City Council communicated that "this City Council has not initiated any judicial action and is not part of the Summary Procedure ***PROCEDURE.1 opened before the Court of Instruction No. X of Ponferrada. However, this Mayor informed the Spanish Agency for Data Protection as well as the Ministry of Territorial Policy and Public Function regarding the assessment of the events that occurred."

SEVENTH. A request dated 08/07/2020 was sent to the Court requesting information in order to communicate its opinion regarding the existence of identity of subject, fact, and basis between the alleged administrative infringement and the corresponding criminal infringement, to proceed, if applicable, with the immediate suspension of the initiated procedure. The Court informed on 08/10/2020 that "there is indeed identity of subject, fact, and basis between the alleged administrative infringement and the corresponding criminal infringement, with the present proceedings currently in process."

EIGHTH. The Court of First Instance and Instruction No. 8 of Ponferrada (León) in an official letter dated 18/07/2022 indicated that "the present procedure has been forwarded for trial to the Provincial Court of León where it has been registered as Summary Procedure No. 51/22, to which any inquiries regarding the same should now be directed."

NINTH. Section 3 of the Provincial Court of León, on 03/04/2023, in Summary Procedure No. 51/22 issued Judgment 136/2023, with the following ruling: "That we must ACQUIT and DO ACQUIT the claimant of all criminal responsibility arising from the crime of discovery and revelation of secrets, which motivated the initiation against her of the present criminal case, declaring the procedural costs ex officio."

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and by the...

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regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

In the case examined, the facts revealed consist of the publication on the WhatsApp social network of a written request from the claimant addressed to the City Hall regarding her working conditions, which could violate the regulations on the protection of personal data, the principle of confidentiality of data regulated in Article 5.1.f) of the GDPR.

It should be noted that upon notification of the initiation agreement, the claimant, by means of a letter dated 28/06/2020, denied the facts and communicated the existence of Preliminary Proceedings, Summary Procedure 0000443/2019 before the Court of First Instance and Instruction No. 8, of Ponferrada (León), requesting the suspension of the procedure due to the existence of criminal prejudiciality regarding the same facts.

A request was sent to the Court asking for information in order to communicate its opinion regarding the existence of identity of subject, fact, and basis between the alleged administrative infringement and the corresponding criminal infringement, to proceed, if applicable, to the immediate suspension of the initiated procedure.

To which the Court informed on 08/10/2020 that "there is identity of subject, fact, and basis between the alleged administrative infringement and the corresponding criminal infringement, with the present proceedings currently in process as of this date."

On 17/12/2021, the same Court communicated that: "on 27/10/2021, an order was issued to continue the proceedings through the procedures of the summary criminal procedure for an alleged crime against personal privacy and revelation of secrets under Articles 197.3 of the Penal Code in relation to Article 198 of the Penal Code, against which an appeal has been filed."

Subsequently, on 18/07/2022, it indicated that "the present procedure has been sent for trial to the Provincial Court of León where it has been registered as Summary Procedure No. 51/22, to which any inquiries regarding the same should now be directed."

Section 3 of the Provincial Court of León, in a letter dated 30/01/2023, communicated the holding of an oral trial for 15/03/2023.

Finally, Section 3 of the Provincial Court of León, on 03/04/2023, Summary Procedure No.

***PROCEDIMIENTO.3 issued Judgment ***SENTENCIA.1, with the following ruling:

"That we must ACQUIT and WE ACQUIT the claimant of all criminal liability arising from the crime of discovery and revelation of secrets, which motivated the initiation against her of the present criminal case, declaring the procedural costs ex officio."

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Against the same, an Appeal could be filed before the same Court, to the Civil and Criminal Chamber of the Superior Court of Justice, within ten days following the last notification of the judgment, without any record of it having been filed.

The proven facts will bind the AEPD regarding a possible sanctioning procedure, in accordance with the provisions of Article 77.4 of Law 39/2015.

Article 77.4 of the LPACAP states that: "In sanctioning procedures, the facts declared proven by final criminal judicial resolutions will bind the Public Administrations regarding the sanctioning procedures they process."

In the Proven Facts of the aforementioned judgment, it is stated that:

"(...)

IT IS NOT PROVEN that Ms. B.B.B. generated a status on her WhatsApp social network profile attaching as a document the letter that hours earlier Ms. A.A.A. had submitted to the City Hall, preceded by the expressions "hot, hot," existing between the parties a context of conflict."

And in the Final Paragraph of Ground IV:

"For all these reasons, the Chamber, evaluating the evidence presented in the oral trial under Article 741 of the Criminal Procedure Law, reaches the logical, precise, and direct conclusion that what

happened is faithfully reflected in the account contained in the proven facts of this resolution, so in the absence of evidence and attending to the principle of presumption of innocence, it is appropriate to agree to the free acquittal of B.B.B. from the crime of discovery and revelation of secrets under Articles 197.1 and 3 of the Penal Code in relation to Article 198 of the same Legal Text for which she was accused by the private prosecution and by the Public Prosecutor's Office, all this as the presumption of innocence has not been destroyed by sufficient evidence to that effect."

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been accredited,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE against Ms. B.B.B., with NIF ***NIF.1, for infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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